

SECOND REGULAR SESSION
[TRULY AGREED TO AND FINALLY PASSED]
SENATE COMMITTEE SUBSTITUTE FOR
HOUSE BILL NO. 1940
103RD GENERAL ASSEMBLY

4851S.02T

2026

AN ACT

To repeal sections 108.240, 115.125, 115.127, 493.050, and 493.070, RSMo, and to enact in lieu thereof five new sections relating to publication of notices.

Be it enacted by the General Assembly of the state of Missouri, as follows:

Section A. Sections 108.240, 115.125, 115.127, 493.050, and 493.070, RSMo, are
2 repealed and five new sections enacted in lieu thereof, to be known as sections 108.240,
3 115.125, 115.127, 493.050, and 493.070, to read as follows:

108.240. 1. Before any general obligation bearer bond or general obligation
2 registered bond, hereafter issued by any county, township, city, town, village or school district
3 or special road district or fire protection district or by virtue of the provisions of chapters 243,
4 245, 248, and sections 242.010 to 242.690 for any purpose whatever, shall obtain validity or
5 be negotiated:

6 (1) If such bonds are in bearer form, such bonds shall first be presented to the state
7 auditor, who, other provisions of law notwithstanding, shall certify by manual or facsimile
8 endorsement of such bonds that all conditions of the laws have been complied with in its
9 issue, if that be the case, and also that the conditions of the contract, under which they were
10 ordered to be issued, have also been complied with and the evidence of that fact shall be filed
11 and preserved by the auditor. The state auditor may endorse bearer bonds with the auditor's
12 facsimile signature in lieu of manual signature after filing the auditor's manual signature,
13 certified by the auditor under oath, with the secretary of state; and

14 (2) If such bonds are in registered form, the proceedings relating to the issuance of
15 such registered bonds shall first be presented to the state auditor, who shall examine the same

EXPLANATION — Matter enclosed in bold-faced brackets **[thus]** in the above bill is not enacted and is intended to be omitted from the law. Matter in **bold-face** type in the above bill is proposed language.

16 and shall issue a certificate that such proceedings comply with all conditions of the laws, if
17 that be the case, and also that the conditions of the contract, under which they were ordered to
18 be issued, have also been complied with, and the evidence of these facts shall be filed and
19 preserved by the auditor. The state auditor shall also maintain the following information: the
20 name of the issuer of the bonds; the amount thereof; the maturity dates thereof; the interest
21 rates thereon; and the provisions with respect to prepayment, if any.

22 2. Such bearer bonds after receiving the said certificate of the auditor as herein
23 provided and such registered bonds after the issuance of the said certificate as herein provided
24 shall thereafter be held in every action, suit or proceeding in which their validity is, or may
25 be, brought into question, prima facie, valid and binding obligations, and in every action
26 brought to enforce collection of such bonds, the certificate of such auditor, or a duly certified
27 copy thereof, shall be admitted and received in evidence of the validity of such bonds,
28 together with the coupons thereto attached if any; provided, the only defense which can be
29 offered against the validity of such bonds shall be for forgery or fraud. But this section shall
30 not be construed to give validity to any such bonds as may be issued in excess of the limit
31 fixed by the constitution, or contrary to its provisions, but all such bonds shall, to the extent of
32 such excess, be held void; and provided further, that the remedy of injunction shall also lie at
33 the instance of any taxpayer of the respective county, city, town, village, township or school
34 district or special road district or fire protection district or drainage district or levy district to
35 prevent the registration of any bonds, alleged to be illegally issued or funded.

36 **3. For purposes of subsection 1 of this section, once the time period set forth in**
37 **section 115.557 has expired, if no election contest has been brought, all conditions of**
38 **chapter 115 shall be deemed as having been complied with in the issuance of the bond.**

115.125. 1. Not later than 5:00 p.m. on the tenth Tuesday prior to any election,
2 except a special election to decide an election contest, tie vote or an election to elect seven
3 members to serve on a school board of a district pursuant to section 162.241, or a delay in
4 notification pursuant to subsection [3] 2 of this section, or pursuant to the provisions of
5 section 115.399, the officer or agency calling the election shall notify the election authorities
6 responsible for conducting the election. The notice shall be in writing, shall specify the name
7 of the officer or agency calling the election and shall include a certified copy of the legal
8 notice to be published pursuant to subsection 2 of section 115.127. The notice and any other
9 information required by this section may, with the prior notification to the election authority
10 receiving the notice, be accepted by **email or** facsimile transmission prior to 5:00 p.m. on the
11 tenth Tuesday prior to the election~~], provided that the original copy of the notice and a~~
12 ~~certified copy of the legal notice to be published shall be received in the office of the election~~
13 ~~authority within three business days from the date of the facsimile transmission.~~

14 ~~2. In lieu of a certified copy of the legal notice to be published pursuant to subsection~~
15 ~~2 of section 115.127, each notice of a special election to fill a vacancy shall include the name~~
16 ~~of the office to be filled, the date of the election and the date by which candidates must be~~
17 ~~selected or filed for the office. Not later than the sixth Tuesday prior to any special election to~~
18 ~~fill a vacancy called by a political subdivision or special district, the officer or agency calling~~
19 ~~the election shall certify a sample ballot to the election authorities responsible for conducting~~
20 ~~the election.~~

21 3.] 2. Except as provided for in sections 115.247 and 115.359, if there is no additional
22 cost for the printing or reprinting of ballots or if the political subdivision or special district
23 calling for the election agrees to pay any printing or reprinting costs, a political subdivision or
24 special district may, at any time after certification of the notice of election required in
25 subsection 1 of this section, but no later than 5:00 p.m. on the eighth Tuesday before the
26 election, be permitted to make late notification to the election authority pursuant to court
27 order, which, except for good cause shown by the election authority in opposition thereto,
28 shall be freely given upon application by the political subdivision or special district to the
29 circuit court of the area of such subdivision or district. No court shall have the authority to
30 order an individual or issue be placed on the ballot less than eight weeks before the date of the
31 election.

115.127. 1. Except as provided in subsection 4 of this section, upon receipt of notice
2 of a special election to fill a vacancy ~~[submitted pursuant to subsection 2 of section 115.125],~~
3 the election authority shall cause legal notice of the special election to be published in a
4 newspaper of general circulation in its jurisdiction. The notice shall include the name of the
5 officer or agency calling the election, the date and time of the election, the name of the office
6 to be filled and the date by which candidates must be selected or filed for the office. Within
7 one week prior to each special election to fill a vacancy held in its jurisdiction, the election
8 authority shall cause legal notice of the election to be published in two newspapers of
9 different political faith and general circulation in the jurisdiction. The legal notice shall
10 include the date and time of the election, the name of the officer or agency calling the election
11 and a sample ballot. If there is only one newspaper of general circulation in the jurisdiction,
12 the notice shall be published in the newspaper within one week prior to the election. If there
13 are two or more newspapers of general circulation in the jurisdiction, but no two of opposite
14 political faith, the notice shall be published in any two of the newspapers within one week
15 prior to the election.

16 2. Except as provided in subsections 1 and 4 of this section and in sections 115.521,
17 115.549 and 115.593, the election authority shall cause legal notice of each election held in its
18 jurisdiction to be published. The notice shall be published in two newspapers of different
19 political faith and qualified pursuant to chapter 493 which are published within the bounds of

20 the area holding the election. If there is only one so-qualified newspaper, then notice shall be
21 published in only one newspaper. If there is no newspaper published within the bounds of the
22 election area, then the notice shall be published in two qualified newspapers of different
23 political faith serving the area. Notice shall be published twice~~[, the first publication~~
24 ~~occurring in the second week prior to the election, and the second publication occurring]~~
25 within ~~[one week]~~ **six weeks** prior to the election. Each such legal notice shall include the
26 date and time of the election, the name of the officer or agency calling the election and a
27 sample ballot; and, unless notice has been given as provided by section 115.129, the second
28 publication of notice of the election shall include the location of polling places. The election
29 authority may provide any additional notice of the election it deems desirable.

30 3. The election authority shall print the official ballot as the same appears on the
31 sample ballot, and no candidate's name or ballot issue which appears on the sample ballot or
32 official printed ballot shall be stricken or removed from the ballot except on death of a
33 candidate or by court order, but in no event shall a candidate or issue be stricken or removed
34 from the ballot less than eight weeks before the date of the election.

35 4. In lieu of causing legal notice to be published in accordance with any of the
36 provisions of this chapter, the election authority ~~[in jurisdictions which have less than seven~~
37 ~~hundred fifty registered voters and in which no newspaper qualified pursuant to chapter 493 is~~
38 ~~published,]~~ may cause legal notice to be mailed ~~[during the second week prior to the election,~~
39 ~~by first class mail,]~~ **within six weeks prior to the election** to each registered voter at the
40 voter's voting address **and published once in one or more newspapers in the county. An**
41 **election authority may exclude from this mailing any voter that is designated as an**
42 **inactive voter pursuant to section 115.193.** All such legal notices shall include the date and
43 time of the election, the location of the polling place, the name of the officer or agency calling
44 the election and a sample ballot.

45 5. If the opening date for filing a declaration of candidacy for any office in a political
46 subdivision or special district is not required by law or charter, the opening filing date shall be
47 8:00 a.m., the ~~[seventeenth]~~ **sixteenth** Tuesday prior to the election. If the closing date for
48 filing a declaration of candidacy for any office in a political subdivision or special district is
49 not required by law or charter, the closing filing date shall be 5:00 p.m., the ~~[fourteenth]~~
50 **thirteenth** Tuesday prior to the election, **or if the thirteenth Tuesday prior to the election**
51 **is a state or federal holiday, the closing filing date shall be 5:00 p.m. on the next day that**
52 **is not a state or federal holiday.** The political subdivision or special district calling an
53 election shall, before the ~~[seventeenth]~~ **sixteenth** Tuesday, prior to any election at which
54 offices are to be filled, notify the general public of the opening filing date, the office or offices
55 to be filled, the proper place for filing and the closing filing date of the election. Such

56 notification may be accomplished by legal notice published in at least one newspaper of
57 general circulation in the political subdivision or special district.

58 6. Except as provided for in sections 115.247 and 115.359, if there is no additional
59 cost for the printing or reprinting of ballots or if the candidate agrees to pay any printing or
60 reprinting costs, a candidate who has filed for an office or who has been duly nominated for
61 an office may, at any time after the certification of the notice of election required in
62 subsection 1 of section 115.125 but no later than 5:00 p.m. on the eighth Tuesday before the
63 election, withdraw as a candidate pursuant to a court order, which, except for good cause
64 shown by the election authority in opposition thereto, shall be freely given upon application
65 by the candidate to the circuit court of the area of such candidate's residence.

493.050. All public advertisements and orders of publication required by law to be
2 made and all legal publications affecting the title to real estate shall be published in some
3 daily, triweekly, semiweekly, or weekly newspaper of general circulation in the county where
4 located, and ~~[which]~~ **such a newspaper** shall have:

5 (1) Been admitted to the post office as periodicals class matter in the city of
6 publication; ~~[shall have]~~

7 (2) Been **either:**

8 (a) Published regularly and consecutively for a period of ~~[three years]~~ **one year**,
9 except that a newspaper of general circulation may be deemed to be the successor to a defunct
10 newspaper of general circulation, and subject to all of the rights and privileges of said prior
11 newspaper under this statute, if the successor newspaper shall begin publication no later than
12 ~~[thirty]~~ **ninety** consecutive days after the termination of publication of the prior newspaper;
13 ~~[shall have]~~ **or**

14 (b) **Purchased or newly established by a newspaper that satisfies the**
15 **requirements of paragraph (a) of this subdivision; and**

16 (3) A list of bona fide subscribers voluntarily engaged as such, who have paid or
17 agreed to pay a stated price for a subscription for a definite period of time~~[-; provided, that~~
18 ~~when].~~

19

20 **If a public notice[-] required by law to be published once a week for a given number of weeks**
21 **[-; shall] is to be published in a daily, triweekly, semiweekly, or weekly newspaper, the notice**
22 **shall appear once a week, on the same day of each week[-; and further provided, that].** Every
23 affidavit to proof of publication shall state that the newspaper in which such notice was
24 published has complied with the provisions of this section~~[-; provided further, that].~~ The
25 duration of consecutive publication provided for in this section shall not affect newspapers
26 which have become legal publications prior to September 6, 1937~~[-; provided, however, that~~
27 ~~when].~~ **If any newspaper shall be forced to suspend publication in any time of war, due to the**

28 owner or publisher being inducted into the Armed Forces of the United States, the newspaper
29 may be reinstated within one year after actual hostilities have ceased, with all the benefits
30 provided pursuant to the provisions of this section, upon the filing with the secretary of state
31 of notice of intention of such owner or publisher, the owner's surviving spouse or legal heirs,
32 to republish such newspaper, setting forth the name of the publication, its volume and
33 number, its frequency of publication, and its readmission to the post office where it was
34 previously entered as periodicals class mail matter, and ~~when~~ if it ~~shall have~~ **has** a list of
35 bona fide subscribers voluntarily engaged as such who have paid or agreed to pay a stated
36 price for subscription for a definite period of time. All laws or parts of laws in conflict with
37 this section except sections 493.070 to 493.120, are hereby repealed.

493.070. In all cities of this state which now have, or shall hereafter have, a
2 population of one hundred thousand inhabitants or more, all public notices and
3 advertisements, directed by any court~~;~~ or required by law to be published in a newspaper,
4 shall be published in some daily newspaper of such city, of general circulation therein, which
5 shall have been established and continuously published as such for a period of at least ~~three~~
6 ~~consecutive years~~ **one year** next prior to the publication of any such notice.

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